

24PSCV04515 24PSCV04515

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Case Number: 24PSCV04515 Hearing Date: July 23, 2026 Dept: G

Plaintiff/Petitioner

Reyna Hernandez's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Jazlyn Castillo, a
Minor

Respondent:

NO OPPOSITION

Plaintiff/Petitioner

Reyna Hernandez's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Kaitlyn Mejia
Hernandez, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Reyna Hernandez's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Jazlyn Castillo, a
Minor is GRANTED.

Plaintiff/Petitioner

Reyna Hernandez's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Kaitlyn Mejia
Hernandez, a Minor is GRANTED.

BACKGROUND

This

is a landlord-tenant habitability action.

Plaintiff/petitioner Reyna Hernandez (Hernandez) is the parent of plaintiffs/claimants Jazlyn Castillo and Kaitlyn Mejia Hernandez (collectively, Claimants). In 2012, Hernandez allegedly entered into a lease with defendant 14420 Clark, LLC (14420 Clark) for residential real property in Baldwin Park, California. Starting in 2015, Hernandez allegedly experienced a cockroach infestation, frequent water shutoffs, deteriorated cabinets, and ceiling leaks in the property, but 14420 Clark allegedly ignored Hernandez's complaints. When Hernandez gave birth to Claimants, 14420 Clark gave Claimants permission to live with Hernandez on the property.

On

December 31, 2024, Hernandez and Claimants (collectively, Plaintiffs) filed the Complaint. On April 10, 2025, Plaintiffs filed the operative Amended Complaint, alleging causes of action for (1) breach of the implied warranty of habitability, (2) tortious breach of the implied warranty of habitability, (3) negligence, (4) intentional infliction of emotional distress, (5) private nuisance, (6) unjust enrichment, and (7) collecting rent from substandard dwelling in violation of Civil Code section 1942.4.

On

June 29, 2026, Hernandez filed these petitions for approval of minor's compromise, which are unopposed.

The

petitions are set for hearing on July 23, 2026.

ANALYSIS

Hernandez

seeks the court's approval of a settlement reached between the Plaintiffs and 14420 Clark. For the following reasons, the petitions are GRANTED.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person. (Prob. Code, § 3601, subd. (a).)

In

cases pursuant to Probate Code section 3601, “unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.” (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, “[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.” (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, 14420 Clark agrees to pay a total of \$125,000.00, including \$5,000.00 to each of the Claimants. (See Pet. Re: Jazlyn Castillo, Attach. 11b(6); see also Pet. Re: Kaitlyn Mejia Hernandez, Attach. 11b(6).) The petitions each request that \$2,000.00 be used for attorney's fees. (See Pet.

Re: Jazlyn Castillo, ¶ 13a; see also Pet. Re: Kaitlyn Mejia Hernandez, ¶ 13a.)

"In

determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest."

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and 5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Regarding

attorney's fees, Hernandez executed a retainer agreement with their counsel for a 40% contingency fee. (See Pet.

Re: Jazlyn Castillo, Attach. 17a; see also Pet. Re: Kaitlyn Mejia Hernandez, Attach. 17a.) The requested

attorney's fee is 40% of each of the Claimants' gross recovery after costs. (See Pet. Re: Jazlyn

Castillo, ¶¶ 13a, 16a, 16c; see also Pet. Re: Kaitlyn Mejia Hernandez, ¶¶ 13a, 16a, 16c.) Counsel's declaration

includes details about their work in this litigation. (See Pet. Re: Jazlyn Castillo, Attach.

13a, ¶¶ 2–8, 10–13; see also Pet. Re: Kaitlyn Mejia Hernandez, Attach.

13a, ¶¶ 2–8, 10–13.) In light of this evidence, the court finds

that the requested attorney's fees are reasonable.

Regarding

litigation costs, the petition for Jazlyn Castillo reflects litigation costs of \$920.26, and the petition for Kaitlyn Mejia Hernandez reflects litigation costs of \$900.26. (See Pet. Re: Jazlyn Castillo, ¶ 13b; see also Pet. Re: Kaitlyn Mejia Hernandez, ¶ 13b.) Upon review, the court finds that the litigation costs were reasonably incurred.

The remaining \$2,079.74 for Jazlyn Castillo and \$2,099.74 for Kaitlyn Mejia Hernandez will be paid or delivered to Hernandez, without bond, on the terms and under the conditions specified in Probate Code sections 3401 to 3402. (See Pet. Re: Jazlyn Castillo, ¶ 18b(5); see also Pet. Re: Kaitlyn Mejia Hernandez, ¶ 18b(5).) Upon review, the court finds that the amount awarded to each of the Claimants to be reasonable and finds the disposition of the funds is proper.

Accordingly,
the petitions for approval of minor's compromise are GRANTED.

CONCLUSION

For
these reasons, the petitions for approval of minor's compromise are GRANTED.